CERTIFICATION OF ETHICS AGREEMENT COMPLIANCE

Senate Confirmed Presidential Appointee

1. Appointee's Information	a. Appointee's Name:	to be completed by OGE Victorino G. Mercado
	b. Position Title:	to be completed by OGE Assistant Secretary
	c. Agency:	to be completed by OGE Department of Defense
	d. Date Ethics Agreement Signed:	to be completed by OGE December 5, 2019
	e. Date Confirmed:	to be completed by OGE June 2, 2020
	f. Due Date for Certification of Ethics Agreement Compliance:	to be completed by OGE **September 7, 2020**
2. Resignations	*I completed all of the resignations indicated in my ethics agreement before I assumed the duties of my current government position.*	○ Yes ○ No ◉ N/A
3. Divestitures	a. *I have completed all of the divestitures indicated in my ethics agreement. I also understand that I may not repurchase these assets during my appointment without OGE's prior approval.*	○ Yes ○ No ◉ N/A
	b. *I have filed a periodic transaction report, or periodic transaction reports, (OGE Form-T) to disclose the completion of these agreed upon divestitures.*	○ Yes ○ No ◉ N/A Filing Date(s) of OGE Form 278-T Report(s):
4. Managed Accounts	*If I have a managed account or use the services of an investment professional, I have notified the manager or professional of the limitations indicated in my ethics agreement. In addition, I am continuing to monitor purchases.*	○ Yes ○ No ◉ N/A
5. Interim Recusals	*I complied with my interim recusal obligations pending the divestitures required by my ethics agreement.*	○ Yes ○ No ◉ N/A

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6. Recusals *(Note: These factual statements describe the appointee's current status. They are not intended to modify ethics agreement commitments or create new recusal obligations.)*	a. *I am recusing from particular matters in which I know I have a personal or imputed financial interest directly and predictably affected by the matter, unless I have received a waiver or qualify for a regulatory exemption.*	◉ Yes ○ No
	b. *I am recusing from particular matters in which any former employer or client I served in the past year is a party or represents a party, unless I have been authorized under 5 C.F.R. § 2635.502(d).*	○ Yes ○ No ◉ N/A
	c. *I am recusing from particular matters in which any former employer or client I served in the two years prior to my appointment is a party or represents a party, unless I have received a waiver under Exec. Order 13770.*	○ Yes ○ No ◉ N/A
7. Waivers and Authorizations	a. *I received a waiver pursuant to 18 U.S.C. § 208.* If yes, indicate the date of the waiver and indicate the financial interest covered by the waiver.	○ Yes ◉ No Date: Financial interest:
	b. *I received a waiver pursuant to Executive Order 13770.* If yes, indicate the date of the waiver and the subject of the waiver (i.e., applicable paragraph of the ethics pledge, parties, particular matters, specific issue areas, as applicable).	○ Yes ◉ No Date: Subject:
	c. *I received an authorization pursuant to 5 C.F.R. § 2635.502(d).* If yes, indicate date of authorization and identify the covered person(s) as to whom you have been authorized (e.g., former employer, former client, spouse's employer, spouse's current client, etc.).	○ Yes ◉ No Date: Covered person(s):
	d. *I received a waiver pursuant to 5 C.F.R. § 2635.503(c).* If yes, indicate the date of the waiver and identify the former employer or payer.	○ Yes ◉ No Date: Former employer or payer:

8. Payments, Accelerations, or Divestitures Required to be Completed Prior to Entering Government Service	Mark this box if not applicable: ☑	a. *If I committed that I would forfeit a financial interest or payment, unless it was received or accelerated prior to my assumption of the duties of the government position:*	○ *I received it (or it was accelerated) prior to my assumption of the duties of the position.* ○ *I received it (or it was accelerated) after my assumption of the duties of the position.* ○ *I forfeited it.*
		b. Financial interest or payment at issue:	
9. Requirements for Regular Appointees	*I have completed my initial ethics briefing, pursuant to 5 C.F.R. § 2638.305.* If you are a Special Government Employee (SGE) or career Foreign Service Officer (FSO), select N/A.		◉ Yes ○ No ○ N/A
	I have signed the ethics pledge pursuant to Executive Order 13770. If you are a SGE or career FSO or previously signed the pledge, select N/A.		◉ Yes ○ No ○ N/A
10. Additional Ethics Agreement Requirements	to be completed by OGE		to be completed by appointee *I am complying with these requirements as described in the adjacent box.* ○ Yes ○ No ◉ N/A
11. Comments of Appointee			

Any intentionally false or misleading statement or response provided in this certification is a violation of law punishable by a fine or imprisonment, or both, under 18 U.S.C. § 1001.

I certify that the information I have provided is complete and accurate.	Appointee's Signature: MERCADO.VICTORINO.GUERRE.1166893158 Digitally signed by MERCADO.VICTORINO.GUERRE.1166893158 Date: 2020.06.16 07:39:35 -04'00'	Date: 16 Jun 2020

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